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**PROFESSIONAL SERVICES AGREEMENT**

for the

**[INSERT PROJECT NAME]**

between

**Company A**

and

**Company B**

## PROFESSIONAL SERVICES AGREEMENT

This agreement for professional services is made as of [●] (the “Effective Date”) by and between:

- (1) **Company A**, a limited liability company with registration number (), incorporated under the laws of the Kingdom of Saudi Arabia, with its registered office at Jeddah Kingdom of Saudi Arabia, Postal (the “**Client**”) and;
- (2) **Company B** a limited liability company with registration number (), incorporated under the laws of the Kingdom of Saudi Arabia, with its registered office at Jeddah Kingdom of Saudi Arabia, Postal (the “**Consultant**”),

(each a “**Party**” and together the “**Parties**”).

### RECITALS:

- (A) The Client launched the [insert description of competition] to a number of prequalified [insert type of services provider] to submit a proposal for the Project (as defined below).
- (B) The Client has selected the Consultant as the winner of the competition and to provide the Services (as defined below).
- (C) The Consultant acknowledges that the Client has entered into this Agreement relying on the skill, care, expertise, experience and ability of the Consultant to provide the Services in accordance with the terms of this Agreement.

### IT IS AGREED:

#### 1. DEFINITIONS

1.1 The following words and expressions shall have the meanings hereby assigned to them:

“Advance Payment” means the amount set forth in Schedule 1 (Project Particulars).

“Advance Payment Guarantee” has the meaning given to it in Clause 11.211.1 (Advance Payment Guarantee).

“Agreement” means the main body of this agreement together with the schedules hereto.

“Applicable Law” means any decree, resolution, statute, act, order, rule, ordinance, law (by-law), decision, code, regulation (including any implementing regulation), license, treaty or directive (to the extent having the force of law) as enacted, introduced or promulgated in the Kingdom, including any amendments, modifications, replacements or re-enactments thereof.

“Award Letter” a written letter issued from the Client to the Consultant to officially inform the Consultant that it has been awarded to provide the Services.

“Business Day” means any day that is not a Friday or Saturday or legal holiday in the Kingdom, or a day on which banking institutions located in the Kingdom are legally required or authorised to close.

“Client’s Representative” means the person identified in Schedule 1 (Project Particulars).

“Confidential Information” has the meaning given to it in Clause 18.1 (Confidential Information).

“Consultant’s Representative” means the person identified in Schedule 1 (Project Particulars).

“Deduction” means the amount set forth in Schedule 1 (Project Particulars).

“Deliverables” means any deliverables to be submitted by the Consultant to the Client as part of the Services, including any drawings, plans, specifications, records, calculations and all other documents and all revisions thereof and additions thereto, and the designs contained in them (whether in hard copy or electronic form once the document or drawing comes into existence), as more particularly described in Schedule 2 (Scope of Services).

“Good Industry Practice” means those practices, standards, degree of care and skill, diligence and foresight generally used by skilled and experienced professional persons acting in good faith in performing services similar to the Services for projects similar to the size, scope, nature and complexity of the Project.

“Fee” has the meaning given to it in Clause 10.1 (Fees and Expenses).

“Force Majeure Event” has the meaning given to it in Clause 24.1 (Force Majeure).

“Intellectual Property” means all intellectual property rights (including, without limitation, rights in the nature of any copyright, trade mark, trade secret, service mark, design, drawing, patent, know-how, secret process and other similar proprietary rights, whether or not registered, and the rights to the registration of those rights and all rights or forms of protection of a similar nature or having equivalent or similar effect to any of these rights (and every renewal or extension of those rights) conferred under statute or common law or equity in any country.

“Key Personnel” means the team members identified in Schedule 5 (Key Personnel).

“Kingdom” means the Kingdom of Saudi Arabia.

“Insurances” means the insurances stated in Schedule 1 (Project Particulars).

“Pre-Existing Intellectual Property” has the meaning given to it in Clause 17.1 (Intellectual Property).

“Project” means the project described in Schedule 1 (Project Particulars).

“Programme” means the programme for the completion of the Services and/or the Project set forth in Schedule 3 (Programme).

“Review Period” has the meaning given to it in Clause 6.1(a) (Review of Deliverables).

“Services” means the services further described in Schedule 2 (Scope of Services).

“Travel Expenses” means the costs and expenses incurred for all travel and accommodation (including visas, housing and meals) to and from the Kingdom or any other location requested by the Client.

“Variation” has the meaning given to it in Clause 5.2 (Variations).

“Client Data” has the meaning given in Clause 27.7 (Cybersecurity Requirements).

“Industry Standards” has the meaning given in Clause 27.7 (Cybersecurity Requirements).

## 1.2 Interpretation

- (a) Words importing the singular shall include the plural and vice versa.
- (b) References to persons shall include firms, corporations and any other organization with legal capacity.
- (c) Words denoting any gender shall include all genders.
- (d) References to any clause, sub-clause, paragraph or schedule are, except where expressly stated to the contrary, references to such clause, sub-clause, paragraph or schedule of this Agreement.
- (e) Headings are for convenience of reference only and do not affect interpretation.
- (f) References to “includes” and “including” (and any variants) shall mean “without limitation”.
- (g) References to this Agreement or to any other document, contract or agreement shall include a reference to each permitted variation of or supplement to this Agreement and such document, contract or agreement as amended, varied or supplemented from time to time.
- (h) References to a Party shall include its successors in title and permitted assignees.
- (i) Where the consent or agreement of a Party is required under this Agreement, that consent or agreement may be given conditionally or unconditionally, or withheld by that Party in its absolute uncontrolled discretion, unless this Agreement expressly provides otherwise.
- (j) The rights and remedies provided under this Agreement are cumulative and not exhaustive and do not exclude any rights or remedies provided under Applicable Law.
- (k) References to any legislation or legislative provision shall include any statutory modification or any legislation or legislative provision which amends or replaces or has amended or replaced it and shall include any sub-ordinate legislation made under any such statute.
- (l) The terms “day”, “month” and “year” shall mean a Gregorian calendar day, month or year respectively.
- (m) If the day on or by which a Party shall do an obligation or action under this Agreement is not a Business Day, the Party shall do it on or by the next Business Day.

## 1.3 Consortium or joint venture

If the Consultant is made up of more than one person, or a term is used in this Agreement to refer to more than one Party:

- (a) an obligation on those persons is joint and several;
- (b) a right of those persons is held by each of them severally;
- (c) an act by one of those person (including insolvency) is deemed to be an act of the Consultant; and
- (d) any other reference to the Consultant or term is a reference to each of those persons separately.

## 1.4 Order of Priority

- (a) If there is a conflict between the terms of this Agreement, then such conflict shall be resolved by giving precedence in the following order of priority:
  - (i) the main body of this Agreement;
  - (ii) Schedule 1 (Project Particulars);
  - (iii) Schedule 2 (Scope of Services);

- (iv) Schedule 3 (Programme);
  - (v) Schedule 4 (Fees and Payment Schedule);
  - (vi) Schedule 5 (Key Personnel); and
  - (vii) Schedule 6 (Form of Advance Payment Guarantee);
- (b) The documents forming part of this Agreement are to be read as a whole. If there is any discrepancy or any other inconsistency, the documents shall be read in the order of priority listed in Clause 1.4(a). If there is any inconsistency within this Agreement which cannot be resolved by applying Clause 1.4(a), the Party discovering it shall notify the other promptly following its discovery. The Client shall issue to the Consultant an instruction to address the inconsistency (including applying the higher of any conflicting or inconsistent standards) and the Consultant shall comply accordingly.
2. APPOINTMENT AND SERVICES
- 2.1 The Client appoints the Consultant to carry out and complete the Services (and such other services reasonably required by the Client and which are reasonably incidental to the Services) in accordance with this Agreement and the Consultant accepts such appointment.
- 2.2 The Consultant shall provide the Services to the Client in accordance with this Agreement.
3. TERM AND COMMENCEMENT
- 3.1 This Agreement shall enter into effect on the Effective Date until the earlier of:
- (a) the date the Client notifies the Consultant that the Services and the Deliverables have been completed, accepted and delivered (as applicable); and
  - (b) termination in accordance with Clause 13 (Termination).
- 3.2 The Consultant shall commence the performance of the Services on the Effective Date. Any Services performed prior to the Effective Date and after the issuance of the Award Letter shall be deemed to have been performed under and in accordance with this Agreement.
4. SERVICE STANDARDS
- 4.1 The Consultant shall perform all Services and prepare and submit all Deliverables in accordance with this Agreement, Good Industry Practice and Applicable Law.
- 4.2 The Consultant shall ensure that all Deliverables will be submitted in the language stated in Schedule 1 (Project Particulars), accurate, fit for their intended purpose and otherwise comply with the requirements of this Agreement.
- 4.3 The Consultant shall ensure that the Services and the Deliverables will not infringe or constitute a misappropriation of any right of any third party, including any copyrights, patent rights, trademark rights, trade secret rights or confidentiality rights or obligations.

- 4.4 The Consultant shall comply with the instructions and directions of the Client and/or the Client's representatives in relation to this Agreement and/or the Services.
- 4.5 The Consultant shall promote the best interests of the Client. The Consultant shall not engage, either directly or indirectly, in any activity which might conflict with the interests of the Client under this Agreement; provided that, the Consultant may accept and perform engagements from or be employed by other persons but only insofar as such engagements or employment does not (in the reasonable opinion of the Client) impinge upon its ability to provide the Services. The Consultant shall immediately disclose to the Client any conflict of interest that arises in relation to the provision of the Services as a result of any present or future appointment, employment or other interest of the Consultant.
- 4.6 The Consultant shall comply with the Programme. Any delay from the Consultant in the performance of the Services will be considered a breach of this Agreement. Where the Services are phased according to the Programme, the Consultant shall only commence each phase when instructed by the Client. Any such instruction shall not release the Consultant from any outstanding obligations in respect of the previous phase.
- 4.7 The Consultant acknowledges that the Client has or will appoint other consultants, contractors and service providers to provide services or works for the Project. The Consultant shall fully cooperate with such persons (including the provision of all information as directed by the Client) and shall ensure the coordination and integration of the Services (including design where applicable) with the services and works provided by such persons to ensure the timely delivery of the Project. The Consultant shall perform the Services so as to avoid interfering with, disrupting or delaying the services or works provided by such other persons.
- 4.8 The Consultant shall devote such time as may be necessary for the proper performance of the Services and shall attend all meetings and conferences reasonably required by the Client.
- 4.9 The Consultant shall provide the Client with a report on the progress of the Services provided (and any issues faced) during that period at the times stated in Schedule 1 (Project Particulars) . Those updates shall be in writing or any form as may be required by the Client.
- 4.10 The Consultant shall not do or omit to do any act, which would or might cause a breach of the Agreement or damage to the image and/or reputation of the Client, the Client's owners, or any of its affiliates or subsidiaries, or to the Kingdom.
- 4.11 No enquiry, inspection, approval, sanction, comment, consent, decision, direction or instruction at any time made or given by or on behalf of the Client shall operate to exclude or limit the Consultant's obligation to exercise Good Industry Practice or otherwise relieve the Consultant from any of its liabilities or obligations under this Agreement.
- 4.12 The Consultant shall always act, in respect of any matter relating to this Agreement or to the Services, as faithful adviser to the Client, and shall at all times support and safeguard the Client legitimate interests in any dealing with third parties.
- 4.13 The Consultant shall be responsible for checking the accuracy and completeness of all Deliverables submitted to the Client and shall ensure that the Deliverables do not contain any untrue, incomplete or inaccurate information.
- 4.14 The Consultant shall re-perform, at its sole cost and expense, any Services which the Client notifies the Consultant as failing to comply with this Agreement. The foregoing is without prejudice to any other rights that the Client may have against the Consultant for damages, losses, costs or expenses arising out of or relating to such re-performance.
5. VARIATIONS
- 5.1 The scope of the Services shall only be varied in accordance with this Clause 5 (Variations).
- 5.2 The Client may at any time by written notice to the Consultant increase, decrease, modify or revise the scope of the Services or the schedule, manner or sequence in which the Services are to be performed (a "Variation").

- 5.3 The Consultant shall, within ten (10) Days of receipt of any such written notice, provide the Client with a written estimate of the time, cost and other effects of the proposed Variation.
- 5.4 Following the Client's further written instruction to proceed with the Variation, the Consultant shall promptly carry out all necessary work to implement such Variation.
- 5.5 The Consultant may at any time by written notice to the Client claim a Variation has occurred if it is required to provide services or deliverables outside of the scope of the Services or the Deliverables; provided that the Consultant may not claim a Variation (a) if any additional services are required to correct any part of the Services (or related Deliverables) due to the action, inaction, default or negligence of the Consultant, (b) for any rescheduling of any dates for presentation of Deliverables, or (c) where the increase, decrease, modification or revision is required as a result of a minimal change to the scope of the Project, a breach of this Agreement by the Consultant or the negligence of the Consultant or any sub-consultant
- 5.6 Where applicable, the value of any Variation shall be based on the rates set forth in Schedule 4 (Fees and Payment Schedule) or such other rates agreed between the Parties.
- 5.7 If under Clause 5.2 or 5.5 a Variation decreases the scope of the Services or omits Services, the Client will not be responsible for loss of profit, or any other indirect or consequential loss.
6. REVIEW OF DELIVERABLES
- 6.1 The Client's obligation to make any payments under Clause 10 (Fees and Expenses) shall be subject to the following conditions:
- (a) the Client shall be entitled to a period of up to thirty (30) Business Days from submission of each Deliverable by the Consultant to conduct a review process (the "Review Period");
  - (b) during the Review Period, the Client shall be entitled to submit questions and provide comments on the Deliverables which the Consultant shall reflect in its revised version of the Deliverables; and
  - (c) following the Review Period, the Client shall be entitled to make an appropriate deduction in respect of any Services (and Deliverables) which have not been performed in accordance with this Agreement.
- 6.2 The Consultant acknowledges and agrees that:
- (a) the receipt of and any review, comment or approval (or deemed approval) by the Client of any Deliverable submitted by the Consultant is solely for the purposes of administration of this Agreement and monitoring the performance of the Consultant under this Agreement;
  - (b) the Client does not accept any responsibility, or assume any duty of care to the Consultant in relation to reviewing or commenting on the Deliverables submitted by the Consultant for errors, omissions or compliance with the requirements of this Agreement; and
  - (c) any comment on, review, approval (or deemed approval) or rejection of, or any failure to review or comment on, approve or reject, the Deliverables or any other direction by the Client about such Deliverables shall not:
    - (i) relieve the Consultant from or alter or affect the Consultant's liabilities or responsibilities under this Agreement or otherwise; or
    - (ii) prejudice the Client's rights against the Consultant, whether under this Agreement or otherwise.
- 6.3 Subject to Clause 6.1, the Consultant shall not make any alteration to, addition to or omission from any Deliverables previously approved by, or submitted to, the Client:
- (a) in the case of a document approved by the Client, without the prior written approval of the Client; and
  - (b) in any other case, without advising the Client of the alteration, addition or omission.
7. REPRESENTATIONS

- 7.1 The Consultant represents and warrants on the Effective Date and each yearly anniversary that:
- (a) it is validly incorporated and in good standing under the laws of the Kingdom of Saudi Arabia;
  - (b) it has the full corporate and legal power and authority to enter into this Agreement, and has taken all action necessary, to execute, deliver and perform its obligations and Services under this Agreement;
  - (c) neither the execution, delivery nor performance of this Agreement, or any other document executed by the Consultant in connection herewith, has resulted or will result in any breach of any provisions of, or constitute a default (or an event which with or without notice and/or lapse of time would constitute a default) under any material agreement or instrument to which the Consultant is a party or by which it is bound;
  - (d) it is (its personnel and its Subcontractors are) professional, appropriately qualified, specialized and capable of performing the Services and delivering the Deliverables in accordance with this Agreement;
  - (e) the Consultant it is not registered in any jurisdiction that is the subject of any trade, economic or financial sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by the Kingdom or any of its institutions and agencies; and none of the Consultant's personnel employed by it in connection with the Project (including, but without limitation, the Key Personnel and the Consultant's Representative) are nationals of a jurisdiction that is the subject of any trade, economic or financial sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by the Kingdom or any of its institutions and agencies; and
  - (f) it is not aware of any insolvency or winding-up orders made against it, nor of any threatened or pending insolvency or winding-up proceedings instituted against it and there is no action, suit or proceeding or official investigation before or by any relevant authorities, arbitral tribunal or other body pending or, threatened against or affecting it or any of its properties, rights or assets, which could reasonably be expected to result in a material adverse effect on its ability to perform the Services, its obligations under this Agreement or on the validity or enforceability of this Agreement.
- 7.2 The Consultant acknowledge and agrees that the First Party aims to develop (PROJECT) and invest in its residents. The Consultant also acknowledge and agrees that the Client is obligated to prefer the local content. Therefore, the Consultant shall, to the maximum extent practicable in the performance of the services, give preference to the local content through the participation of Saudi elements in the labour force, goods, services, assets, technology and so on. (PROJECT USERS) are always a priority through training and hiring to perform the services or through the purchase of local goods and products.
8. CONSULTANT'S PERSONNEL
- 8.1 The Consultant shall use qualified, competent and experienced personnel suitable for performing the Services in accordance with the terms of this Agreement and in accordance with international professional standards for experienced consultants specializing in the disciplines required to perform the Services. Each person assigned to perform any part of the Consultant's obligations hereunder shall be qualified to perform such obligations. In addition, the Consultant shall be fully responsible for and shall bear the costs of obtaining the visas and other permits needed by the Consultant's personnel to enter into, reside and work in the Kingdom for the purpose of performing the Services and complying with its other obligations under this Agreement.
- 8.2 The Consultant shall ensure that the Consultant's personnel observe and perform every provision of any applicable safety regulations and security regulations of the Client for the time being in force. The Consultant shall take full responsibility for the safety of all the Consultant's personnel employed in connection with the Project and shall keep the Client fully indemnified accordingly provided that this taking of responsibility and indemnity shall not apply to any injury which may be caused by the negligence or wilful default of the Client or the Client's personnel.
- 8.3 The Client shall be entitled to require the Consultant to remove from the provision of the Services any person (including Key Personnel and the Consultant's Representative) employed or appointed by the Consultant in the performance of the Services who the Client considers to be guilty of misconduct or is incompetent or negligent or whose appointment is otherwise considered by the Client to be undesirable. The Consultant shall, within five (5) Business Days from the date of notice from the Client,



remove such person from the performance of the Services without any liability to the Client and arrange for the provision of a replacement of such member of the Consultant's personnel by a suitably qualified and experienced person approved by the Client's Representative at no cost to the Client and without incurring delay to the performance of the Services.

- 8.4 The Consultant shall appoint the Key Personnel for the purposes of carrying out the Services and may not change the Key Personnel without the Client's prior written consent. In the event of any such person leaving the Consultant's employment, or as a result of death or incapacity becoming unable to carry out the Services, the Consultant shall forthwith appoint a replacement with at least the same level of experience.

## 9. AUTHORISED REPRESENTATIVES

- 9.1 The Consultant's Representative has overall responsibility for the performance of the Services. The Consultant agrees that it shall not remove or replace such person from the role as the Consultant's Representative without the prior written consent of the Client. In the event of such person leaving the Consultant's employment, or as a result of death or incapacity becoming unable to carry out the Services, the Consultant shall forthwith appoint a replacement with at least the same level of experience.

- 9.2 The Client shall be entitled to rely on the authority of the Consultant's Representative to act for and commit the Consultant in regard to all matters in connection with the Services and this Agreement (including, without limitation, the making of any amendments or additions to this Agreement or deletions from this Agreement).

- 9.3 The Consultant shall be responsible to the Client for the acts, defaults and neglects of the Consultant's Representative as if they were the acts, defaults and neglects of the Consultant itself and accordingly the appointment of the Consultant's Representative shall in no way relieve the Consultant of any obligation or liability under this Agreement.

- 9.4 The Client hereby nominates the Client's Representative as the primary contact point for this Agreement.

- 9.5 The Client's representative shall have full authority to act on behalf of the Client under this Agreement, except in relation to matters which the Client may from time to time by written notice to the Consultant reserve to itself. The Client's representative may from time to time in writing, delegate any of the duties and authorities vested in him to another person and may from time to time revoke any such delegation in either case by advising the Consultant in writing. The Client may replace the Client's representative from time to time by notice in writing to the Consultant.

## 10. FEES AND EXPENSES

- 10.1 The Client shall pay to the Consultant as remuneration for the performance of the Services the fees, as calculated on the basis set forth in Schedule 4 (Fees and Payment Schedule), which is inclusive of all costs, incidental expenses, approved Travel Expenses and disbursements incurred by the Consultant and all profit (the "Fee"). The Fee shall only be adjusted by a Variation.

- 10.2 The Consultant shall invoice the Fee in the currency stated in Schedule 1 (Project Particulars) and the Client shall, subject to the other terms of this Agreement, pay the approved amount within sixty (60) Business Days from the date of the Client's approval of each invoice (such approval not to be unreasonably withheld).

- 10.3 The Consultant shall not be entitled to invoice the Client for any amount(s) in addition to the Fee unless specifically agreed by the Parties in writing prior to the amount(s) being incurred.

- 10.4 Amounts paid to the Consultant must not exceed the value of the completed Services, with payment for a certain percentage of the value of completed Services being deferred, either by retraining a certain percentage of each payment or by retaining the final instalment or by both, provided that the retained amount shall not be less than five (5%) percent of the total value of the Agreement. The deferred payment shall be released on completion of the Services and final acceptance thereof by the Client.

- 10.5 In case of a Dispute between the Client and the Consultant as to whether an amount is owed or due in relation to the Services, the Client shall pay all amounts that are not in dispute but shall not be required to pay the amount which is in dispute until the Parties settle or otherwise resolve such Dispute. The Consultant shall continue to perform all of its obligations under this Agreement notwithstanding such Dispute.
- 10.6 The Consultant shall maintain complete and accurate records, in accordance with generally accepted accounting principles in the Kingdom, to substantiate the Consultant's charges under any invoice. The Consultant shall maintain such records for a period of ten (10) years from the date of completion of the Services. The Client shall have access to all such records, including all supporting documentation, for the purpose of verifying any and all charges billed to the Client under this Agreement during the period of ten (10) years from the date of completion of the Services. The Consultant shall cooperate with the Client by providing the Client with access to the Consultant's records within five (5) Business Days of the Client's request. The examination of such records shall be conducted at a mutually agreed place and time.
- 10.7 The Client may set off or deduct from any payments due to the Consultant under this Agreement any debt or other monies due from the Consultant to the Client under this Agreement.
- 10.8 The Client shall not be obligated to make any payments to the Consultant under this Agreement unless the Consultant has complied (if applicable) with its obligations under Clauses 11 (Advance Payment) and 12 (Parent Guarantee).

## 11. ADVANCE PAYMENT

- 11.1 The Client may, if stated in Schedule 1 (Project Particulars), make an Advance Payment to the Consultant (as an interest-free loan) following receipt of the Advance Payment Guarantee.
- 11.2 The Consultant shall obtain (at the Consultant's cost) an advance payment guarantee in amount and currency equal to the Advance Payment (the "Advance Payment Guarantee"), and shall submit it to the Client. This guarantee shall be issued by a bank licensed to do business in the Kingdom, and shall be based on the form set forth in Schedule 6 (Advance Payment Guarantee) or on another form agreed by the Client (but such consent and/or agreement shall not relieve the Consultant from any obligation under this Clause).
- 11.3 The Consultant shall ensure that the Advance Payment Guarantee is valid and enforceable until the Advance Payment has been repaid, but its amount may be progressively reduced by the amount repaid by the Consultant in accordance with Clause 11.6.
- 11.4 If the Advance Payment has not been repaid by the date twenty (20) Business Days before the expiry date of the Advance Payment Guarantee:
- (a) the Consultant shall extend the validity of this guarantee until the advance payment has been repaid;
  - (b) the Consultant shall immediately submit evidence of this extension to the Client; and
  - (c) if the Client does not receive this evidence five (5) Business Days before the expiry date of the Advance Payment Guarantee, the Client shall be entitled to claim under the Advance Payment Guarantee the amount of Advance Payment which has not been repaid.
- 11.5 When submitting the Advance Payment Guarantee, the Consultant shall include an invoice for the Advance Payment.
- 11.6 The advance payment shall be repaid through the Deduction from each instalment of the Fee until such time as the Advance Payment has been repaid.

- 11.7 If the advance payment has not been repaid before the completion of the Services, or before termination under Clause 13 (Termination), the whole of the balance then outstanding shall immediately become due and payable by the Consultant to the Client.

## 12. PARENT GUARANTEE

- 12.1 If stated in Schedule 1 (Project Particulars), upon execution of this Agreement, the Consultant shall deliver to the Client a duly executed Parent Company Guarantee (or, in the case of a joint venture, consortium or association of companies, from each constituent company's ultimate parent company) for the Consultant's performance of this Agreement.
- 12.2 Without prejudice to any other rights of the Client under this Agreement, the provision and continued maintenance of the Parent Company Guarantee in full force and effect shall be an on-going condition precedent to the Consultant's entitlement to be paid and/or continue to be paid for the performance of the Services.

## 13. TERMINATION

- 13.1 The Client shall be entitled to terminate this Agreement with immediate effect (and without any notice, payment in lieu of notice or court decision) if the Consultant:
- (a) violates any of the terms or conditions of this Agreement and fails to correct such violation within fifteen (15) Business Days from the date of the Client's written request to rectify, or remedy the violation;
  - (b) neglects or refuses to provide the Services;
  - (c) assigns the contract or subcontracts its execution without the prior written permission of the Client;
  - (d) becomes bankrupt, files for bankruptcy, is proven insolvent or is the subject of an order to put the Consultant under receivership, or is liquidated or dissolved; or
  - (e) acts in any way which materially prejudices the interests of the Client or any of its affiliates or subsidiaries, or the Kingdom.
- 13.2 The Client may otherwise terminate this Agreement at any time and without cause upon ten (10) Business Days' prior written notice to the Consultant.
- 13.3 In the event of the termination of this Agreement, the Client shall only be liable to the Consultant in respect of fees and expenses due for the Services (and Deliverables) actually provided up to the date of termination (calculated by the Client on a pro rata basis) and shall not be liable to the Consultant for any compensation in respect of loss of profits, overheads, loss of contact or other consequential or indirect losses in connection with the termination of this Agreement. If the Services (and Deliverables) actually provided at the time of termination do not correspond with the payment made pursuant to Clause 10 (Fees and Expenses), the Consultant shall be liable to the Client for reimbursement of such payment (calculated by the Client on a pro rata basis), and such reimbursement shall be made within five (5) Business Days of written demand from the Client.

## 14. CONSEQUENCES OF TERMINATION

- 14.1 Upon the termination of this Agreement for whatever reason, the Consultant shall:
- (a) proceed in an orderly manner but with all reasonable speed, diligence and economy to take such steps as are necessary to bring to an end the Services under this Agreement in an efficient manner;
  - (b) in the event that the Client has appointed another consultant to complete the Services after such termination, fully cooperate with such consultant for the orderly transfer of the Services to the extent that it is reasonable to do so; and
  - (c) within ten (10) Business Days from the date on which the termination takes effect, deliver, and procure that each sub-consultant of the Consultant shall deliver to the Client all Deliverables and any other

documents, papers, disks, drawings, software, reports, passes, keys, equipment and property of any sort belonging to the Client which may be in the Consultant's possession or under its control (including any work product in progress but not yet completed), and a signed declaration to the Client that it has returned the same.

- 14.2 Any termination of the Agreement shall not prejudice or affect the accrued rights or claims of either Party under this Agreement. The clauses of this Agreement which are necessary to give effect to this Agreement after termination shall survive any termination of this Agreement.

## 15. SUSPENSION

- 15.1 The Client may by five (5) Business Days' written notice require the Consultant to suspend the performance of any or all of the Services.
- 15.2 If the Services are so suspended, the Client shall only be liable to the Consultant in respect of the Fees due in respect of the Services (and Deliverables) actually provided up to the date of suspension (calculated by the Client on a pro rata basis) and shall not be liable to the Consultant for any compensation in respect of loss of profits, overheads, loss of contact or other consequential or indirect losses in connection with the suspension of the Services.
- 15.3 The Consultant shall resume the performance of the suspended Services on the date instructed to do so in the notice issued by the Client in accordance with Clause 15.1.

## 16. FINES AND COMPENSATIONS

- 16.1 Responsibility of the Parties arising from a breach of this Agreement are determined by Applicable Law.
- 16.2 In the event that the Consultant, because of its sole fault, becomes in delay for delivering the Services on the agreed upon due date(s), the Client has the right to impose a delay fine on the Consultant for each day of delay to be calculated on the basis of dividing the total value of the Agreement by the total number of days during which the Services must be provided and deduct the amounts corresponding to the delayed days, however such delay fine shall not exceed twenty (20%) percent of the total value of this Agreement. In addition to the delay fine, the Client shall be freely entitled to exercise all of its rights as appropriate provided under this Agreement. In this case, the Client has the right to deduct such fine from any dues of the Consultant resulting from this Agreement or any other contract the Consultant has with the Client.
- 16.3 If the Client exercises his right referred to in section above, the delay fine shall become due without need to serve any notice, file any legal action or prove any damage or losses, provided that the delay is not caused by an action attributed to the Client.
- 16.4 The Consultant acknowledges that upon the occurrence of any delay to executing this Agreement caused by it, the Client shall have the right to suspend any payments related to this Agreement.

## 17. INTELLECTUAL PROPERTY

- 17.1 Intellectual Property in all documents and drawings (whether in hard copy or electronic form once the document or drawing comes into existence) prepared by or on behalf of the Consultant in the provision of the Services shall be the property of, and shall immediately upon creation vest in, the Client, provided that the Consultant shall retain title to any pre-existing Intellectual Property which is owned by the Consultant as at the Effective Date (the "Pre-Existing Intellectual Property").
- 17.2 The Consultant grants to the Client an irrevocable, non-exclusive, transferable, assignable, royalty-free licence to use the Pre-Existing Intellectual Property for the purposes of the Project, including for any:
  - (a) further modification of the Project; and
  - (b) interfaces with other works relating directly or indirectly to the Project.

- 17.3 The Client grants to the Consultant, a revocable, exclusive, non-transferable, royalty-free licence to use the Intellectual Property referred to in Clause 17.1 (other than Pre-Existing Intellectual Property) only for the purpose of the Project, including any further modification of the Project.
- 17.4 The Consultant:
- (a) agrees to take appropriate care so that all Deliverables, and their use, do not infringe the Intellectual Property rights of any person; and
  - (b) indemnifies the Client, its officers, agents, contractors and employees against any claim that the use of any Deliverables infringes any Intellectual Property rights anywhere in the world.
- 17.5 The Consultant shall ensure that the terms of any engagement with any subcontractor allow for the transfer of ownership and licensing of Intellectual Property contemplated by this Clause 17.

## 18. CONFIDENTIAL INFORMATION

- 18.1 A confidential relationship between the Parties exists by reason of which the Client has disclosed, and may in the future disclose, commercially valuable confidential information, including: project ideas, methods, concepts, analysis, studies, research, business strategies; internal plans and information about the Client, its business and its products; any non-public or proprietary information whether written, verbal or included in whatever support, including without limitation, specific items such as the terms of any agreement between either the Client and any other party; the Client's identity, strategic plans, market intelligence, pricing; the terms and nature of any negotiations with business or potential business associates or vendors of the Client; information concerning the nature, extent and volume of profit originated or received by the Client; income statements, financial statements, balance sheets, methodologies, studies and analysis and other financial information prepared by or concerning the Client; projections for future project, income, and business, governmental affairs, communication and/or public relations plans; inter or intra-Client relationships between the Client and its affiliates; information regarding licenses; technological specifications; legal documents and legal issues, strategic studies, economic studies and all such other information; any information related to this Agreement ("Confidential Information").
- 18.2 The Consultant undertakes to keep the Confidential Information secret and confidential and shall, during the term of this Agreement and for a period of ten (10) years from the termination hereof or the completion of the Services, not divulge any such Confidential Information or knowledge to any person, corporation, or other entity, or use the Confidential Information in any way whatsoever, except as necessary to perform the Services, as required by Applicable Law or as otherwise authorized by the Client in writing.
- 18.3 The Consultant agrees that it shall not use or exploit the Confidential Information obtained under this Agreement for any other reason beyond the provision of the Services.
- 18.4 The Consultant must not make any articles, presentations, statements, speeches, studies or other remarks concerning the Client or the Consultant's work for the Client or the Confidential Information, without the Client's prior written approval.
- 18.5 The Consultant shall not disclose or make available any Confidential Information in social media, memoirs, magazines, publications or interviews, studies or analysis.
- 18.6 The Consultant shall take all reasonable security precautions, including precautions at least equal to the precautions that it takes to protect its own confidential information, to protect the secrecy and confidentiality of the Information of / belonging to the Client.

## 19. LIMITATION ON LIABILITY

- 19.1 Subject to Clause 19.2, neither Party shall be liable to the other by way of indemnity or by reason of any breach of the Agreement or of statutory duty or by reason of tort for:

- (a) any indirect or consequential loss or damage whatsoever that may be suffered by the other Party; or
  - (b) any loss or deferral of use, loss or deferral of opportunity, loss or deferral of profit, loss or deferral of revenue, or for any form of indirect, special or consequential loss or damage, save for a loss of reputation and a loss of goodwill, in each case whether direct or indirect to the extent that these are not included in (a).
- 19.2 Clause 19.1 shall not apply in relation to any liability: (a) arising from fraudulent misrepresentation, wilful misconduct, or negligence; (b) which cannot be lawfully excluded or limited; and (c) to indemnify under Clause 21 (Indemnification).
- 19.3 To the extent permitted by Law, the cumulative liability of both Parties under this Agreement shall not exceed the amount set out in Schedule 1 (Project Particulars).
20. INSURANCE
- 20.1 The Consultant shall, at its sole cost and expense, obtain and maintain in force during the term of this Agreement, the Insurances which shall be issued by a reputable insurance company.
- 20.2 The Consultant shall provide the Client with a copy of its certificate of Insurances on the Effective Date and each yearly anniversary during the term of this Agreement.
- 20.3 The Consultant represents to the Client on the Effective Date and each yearly anniversary that:
- (a) the Insurances are currently in place with limits of indemnity of not less than the amount set forth in Schedule 1 (Project Particulars) for each and every claim;
  - (b) to the best of the knowledge, information and belief of the Consultant, the Insurances are valid, all circumstances relevant to the policies have been disclosed to the insurer, there are no circumstances entitling the insurer to avoid the policy and the premiums for the current period of insurance have been paid; and
  - (c) the Consultant is not aware of any reason why claims under this Agreement will not be covered by the Insurances to the extent of such insurance cover, and should the Consultant become aware of any reason why claims under this Agreement may not be covered by the Insurances to the extent of such insurance cover, the Consultant shall notify the Client in writing immediately.
- 20.4 The Consultant undertakes to:
- (a) maintain professional indemnity insurance from the date of this Agreement and for so long as any liability may arise under this Agreement but in any event for a period not less than ten (10) years from completion of the Services or the earlier termination of this Agreement, provided always that in each case such insurance is available in the market to members of the Consultant's profession at commercially reasonable rates;
  - (b) ensure that the Insurances are and shall continue to be effected with well-established insurers of substance and good repute that are acceptable to the Client;
  - (c) ensure that the Insurances do not and will not contain any unusual or unduly onerous conditions, limitations, exclusions or excesses; and
  - (d) as and when reasonably required by the Client, provide the Client with written confirmation from an independent firm of insurance brokers that the Consultant has the Insurances in force in accordance with the provisions of this Clause.
- 20.5 Any increased or additional premium required by insurers by reason of the Consultant's own claims record or other acts, omissions, matters or things particular to the Consultant, whether associated with this Agreement or otherwise, shall be deemed to be within commercially reasonable rates.

- 20.6 The Consultant shall immediately inform the Client if any of the Insurances cease to be available at commercially reasonable rates in order that the Parties can discuss means of best protecting the respective positions of the Parties in respect of the Services in the absence of such insurance.
- 20.7 The Parties agree that all insurance deductibles and excesses shall be the sole responsibility of the Consultant.
- 20.8 As and when he is required to do so by the Client, the Consultant shall produce for inspection documentary evidence to show that such Insurances are being maintained in accordance with the requirements of this Agreement.
- 20.9 The Consultant shall immediately upon receipt thereof notify each insurer under the relevant Insurances of any claim made against him under this Agreement.
- 20.10 The taking out of any insurances by the Consultant whether pursuant to this Agreement or otherwise and/or whether or not the Consultant receives any payment or monies from such insurances shall not diminish its obligations under this Agreement, including, without limitation, those set forth in Clause 21 (Indemnification).
- 20.11 The Consultant shall at all relevant times maintain the Insurances in accordance with this Clause 20. If the Consultant fails to maintain the premiums of any of the Insurances, the Client shall be entitled, upon ten (10) Business Days' written notice, to pay all such premiums on behalf of the Consultant and all amounts incurred by the Client in connection with the payment of such premiums shall be on account of the Consultant and shall constitute a debt owed by the Consultant to the Client.

## 21. INDEMNIFICATION

The Consultant shall indemnify and hold harmless the Client, its employees, agents or representatives against any and all losses, liabilities, costs, claims, actions or demands which the Client or any of its employees, agents or representatives may suffer or incur as a result of or in connection with any acts or omissions resulting in loss, injury (including death) or damage to persons or property which may result from or occur in connection with the Consultant's or the Consultant's Personnel's failure to observe or perform their respective obligations under or in connection with this Agreement (including, without limitation, any infringement or alleged infringement of Intellectual Property rights) or in any way arising out of any negligent cause, matter or thing existing up to the date of expiration or termination of this Agreement as well as losses, liabilities, costs, claims, actions or demands which arise during the term of this Agreement or which are based on facts which exist during the term of this Agreement but which are only discovered subsequent to the date of completion or termination of this Agreement, provided that this indemnity shall not apply with regard to any such matters incurred or made as a result of or in connection with losses, injuries or damage to persons or property resulting from any act or neglect of the Client.

## 22. TAXES

- 22.1 The Consultant shall be responsible to pay its own taxes under both its home jurisdiction and that of the Kingdom. The Client accepts no liability for the tax obligations of the Consultant in this regard provided that the Client shall pay value added tax to the extent chargeable in the Kingdom.
- 22.2 The Consultant acknowledges that the Client may be required, as a matter of Applicable Law, to apply withholding tax on the remuneration payable pursuant to Clause 10 (Fees and Expenses) and, if required, shall provide the Consultant with a tax certificate.

## 23. ANTI-BRIBERY

The Consultant undertakes that:

- 23.1 it will not, in the performance of this Agreement or in connection with any related activity, pay, make, give, offer, or promise, directly or indirectly, any cash payment or anything of value to any official, public officer, political officer or any third party employed by the Client to induce such official or person to use his or her influence with respect to the Project, with a government, agency or instrumentality,

public international organization or political party or any subdivision thereof to obtain an improper business advantage for the Client;

23.2 it has not sought and will not seek, has not attempted and will not attempt to obtain, and has not accepted and will not accept, any advantage, financial or in kind, to or from any party whatsoever, where such advantage constitutes an illegal practice or involves corruption, either directly or indirectly, in as much as it is an incentive or reward relating to performance of the Agreement;

23.3 it will report immediately to the Client any information that may indicate there has been money or anything of value paid, made, given, offered, or promised, directly or indirectly, to any official, or public or political officer as described above;

23.4 it will disclose any commissions, fees or political contributions as required by law;

23.5 no government official or public or political officer has any affiliation with, or any ownership or financial interest in the Consultant and the Consultant will disclose promptly and in writing to the Client any such future affiliation or interest.

## 24. FORCE MAJEURE

24.1 Force majeure means, in relation to any Party, any circumstances beyond its reasonable control affecting the performance by the party of its obligations under this Agreement including adverse weather conditions, serious fire, storm, flood, lightning, earthquake, explosion, acts of a public enemy, terrorism, war, military operations, insurrection, sabotage, civil disorder, epidemic, embargoes, labour disputes of a person other than such party, acts of God (a "Force Majeure Event").

24.2 A Force Majeure Event shall not include, and a Party shall not be excused from performance of its obligations due to, the following:

- (a) late performance by the Consultant caused by the acts or omissions of its subcontractors, inefficiencies on the part of the Consultant, lack of or damaged equipment, shortages of staff or shortages of labour, goods or materials (other than where caused by a Force Majeure Event);
- (b) labour related incidents such as strikes or work stoppages (except for national strikes in the jurisdictions in which the Services are to be performed that directly affect the Services);
- (c) economic hardship or market changes;
- (d) the late payment of money or inability of a party to pay its debts;
- (e) infringement of any Intellectual Property; and/or
- (f) any event which a diligent Party could reasonably have been expected to both: (i) take into account at the time of the entering into of this Agreement; and (ii) avoid or overcome in the carrying out of its obligations under this Agreement.

24.3 A Party who becomes aware of a Force Majeure Event which gives rise to, or which is likely to give rise to, any failure or delay in performing its obligations under this Agreement shall notify the other Party within ten (10) Business Days of the occurrence of the Force Majeure Event and shall inform the other Party of the period for which it is estimated that such failure or delay will continue. The affected Party shall take all reasonable steps to mitigate the effect of the Force Majeure Event.

## 25. NOTICES AND COMMUNICATION

25.1 Any notice given under this Agreement shall be in writing and signed by or on behalf of the Party giving it and shall be served by delivering it personally, sending it by overnight courier, or sending it by email. A notice shall be deemed received: (i) if delivered personally, at the time of delivery; (ii) if by email, at the time of the other Party acknowledging receiving the email, provided that the email is properly



addressed and sent and confirmation of good receipt is obtained by the sender; or (iii) if by overnight courier service, on the date on which confirmation of receipt is signed by, or on behalf of, the recipient.

25.2 Notices and all other communications shall be in the English language.

25.3 Notices shall be sent to a Party at its address or email set forth in Schedule 1 (Project Particulars).

## 26. GOVERNING LAW AND JURISDICTION

26.1 This Agreement shall be governed by and construed in accordance with Applicable Law.

26.2 In the event of any dispute, the Parties shall endeavour to negotiate in good faith prior to the commencement of any legal proceedings.

26.3 Should the Parties fail to resolve the dispute amicably within twenty (20) Business Days from the start of negotiations, then any dispute, controversy or claim arising out of or relating to this contract, or the breach, termination or invalidity thereof, shall be settled by the competent courts of the Kingdom.

## 27. MISCELLANEOUS

### 27.1 Independent Contractor

(a) This Agreement shall not constitute a partnership, joint venture, affiliation or relationship of any kind other than the contractual relationship specifically set forth in this Agreement.

(b) The relationship of the Consultant to the Client will be that of independent contractor and nothing in this Agreement shall render the Consultant (or any of its personnel) an employee, worker, agent or partner of the Client and the Consultant shall not hold itself out as such.

### 27.2 Entire Agreement

(a) This Agreement contains the entire agreement between the Parties relating to the Services and supersedes and extinguishes any prior drafts, agreements, undertakings, representations, warranties, assurances and arrangements of any nature whatsoever, whether or not in writing, relating thereto.

(b) The Consultant has not entered into this Agreement in reliance upon, nor shall the Consultant have any claim or remedy in respect of, any statement, representation, warranty, undertaking, assurance, promise, understanding or other provision made by or on behalf of the Client or any other person which is not expressly set forth in this Agreement.

### 27.3 Publicity

Any public representation regarding the Client, the Project and Services shall be made by the Client. The Consultant shall not use the Client's trademarks or logos, or reference the Client, without the Client's prior written consent

### 27.4 Severability

If any clause, exhibits or sections of this Agreement is found or held to be invalid or unenforceable in any jurisdiction in which this Agreement is being performed, the remainder of this Agreement shall be valid and enforceable and the Parties shall negotiate in good faith, a substitute, valid and enforceable provision which most nearly effects the Parties' intent in entering into this Agreement.

### 27.5 Assignment

(a) The Consultant shall not assign, novate or otherwise transfer this Agreement or any right or obligation hereunder (whether or not accrued) or any part of it.

(b) The Client and any assignee of the Client or of a subsequent assignee may assign by way of security, assign, novate or otherwise transfer or charge this Agreement and/or any of its rights and obligations under this Agreement (whether or not accrued) before or after the completion of the Services without the consent of the Consultant.

## 27.6 Subcontracting

- (a) The Consultant may sub-contract, on a strictly non-exclusive basis, with third parties to provide some or all of the Services required to be performed by it under this Agreement with the prior written consent of the Client (both as to the principle of sub-contracting and the identity of the proposed sub-consultant) provided that:
  - (i) The Services assigned to the sub-contractor shall not exceed 30% of the Agreement value.
  - (ii) the Consultant shall ensure that all sub-consultants are contractually bound to comply with the terms of this Agreement;
  - (iii) each person contracted to perform any part of the Consultant's obligations hereunder shall be qualified and, if required by Applicable Law, licensed or certified to perform such obligations;
  - (iv) The Consultant shall only sub-contract the Services to contractors licensed to perform the Services. If the Services requires classification, the sub-contractor shall be classified to the required degree in the field, and should have the sufficient qualifications and capabilities to carry out the Services;
  - (v) The subcontractor may not contract any other subcontractor to carry out the Services. Nevertheless, the Consultant shall be liable to the Client for the Services subcontracted in accordance with the terms and specifications stipulated in this Agreement;
  - (vi) upon completion of the Services or the termination of this Agreement, the Client may contract with any of the Consultant's sub- consultants engaged in the performance of the Services.
- (b) No sub-contracting and no consent to sub-contract shall operate to exclude or limit the obligations and liabilities of the Consultant under this Agreement and the Consultant shall be and shall remain fully responsible in respect of all Services performed by any sub-consultants as if they had been performed by the Consultant under this Agreement.

## 27.7 Cybersecurity Requirements

- (a) Where Consultant knows, or reasonably suspects, that a loss, unauthorized acquisition, disclosure, use or other form of compromise of Client Data has occurred, Consultant will notify Client's point of contact in writing promptly, and in any event within forty-eight (48) hours following such discovery and cooperate with Client in any breach investigation or remediation efforts. For the purposes of this paragraph, "Client Data" (Any information both electronic and physic which may be in the form of text documents, images, audio clips, software programs, or other types of data) shall mean all information or data collected, stored, processed, received and/or generated by Consultant in connection with providing the applicable Services to Client, including Client Personal Data (Any information relating to an individual that identifies the individual or could reasonably be used to identify the individual regardless of the medium involved (e.g. paper, electronic, video, audio)).
- (b) The Consultant represents and warrants that it shall implement appropriate technical and organizational security measures, based on Industry Standards (an established standard, norm, or requirement in a particular area of business). iindustry standards shall means commercially reasonable security measures in all applicable equipment, software systems and platforms that the Consultant uses to access, process and/or store Client Data, that are designed to ensure the security, integrity, and confidentiality of Client Data, and to protect against the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Client Data, including those safeguards, practices and procedures prescribed in either the National Cybersecurity Authority's Essential Cybersecurity Controls Regulation, and/or global information security and Data Privacy best practices as applicable (the "Industry Standards").

## 27.8 Amendment

No alteration, amendment, waiver, cancellation or other change in any term or condition of this Agreement shall be valid or binding on either Party unless the same has been agreed to in writing by both Parties.

## 27.9 Counterparts

This Agreement is executed 6 counterparts. Each counterpart shall constitute an original of this Agreement but all counterparts together shall constitute the one and same instrument.

#### 27.10 Survival

Clauses 13.3 (Termination), 14 (Consequences of Termination), 17 (Intellectual Property), 18 (Confidential Information), 19 (Limitation on Liability), 21 (Indemnification), 25 (Notices and Communications), 26 (Governing Law and Jurisdiction) and 27 (Miscellaneous) shall survive the termination of this Agreement for any reason.

#### 27.11 Right of Third Parties

A person who is not a party to this Agreement shall have no right to enforce any of its terms.

#### 27.12 Costs

Each Party shall bear its own costs and expenses arising out of or in connection with the negotiation, preparation and implementation of this Agreement.

#### 27.13 Remedies

The rights, powers, privileges and remedies provided in this Agreement are cumulative and not exclusive of any rights, powers, privileges or remedies provided by law.

#### 27.14 Further assurances

The Consultant shall, at its own cost, promptly execute and deliver all such documents, and do all such things, as the Client may from time to time reasonably require for the purpose of giving full effect to the provisions of this Agreement and to secure for the Client the full benefit of the rights, powers and remedies conferred upon it under this Agreement.

#### 27.15 Language

The main body of this Agreement has been prepared in both Arabic and English. In the event of any conflict between the Arabic text and the English text, the Arabic text shall prevail. The Schedules to this Agreement have been prepared in English only.

The Parties have caused this Agreement to be executed as of the date of this Agreement.

Company A

(the Client)

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Name:

Position:

Company B

(the Consultant)

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Name:

Position: